

MODERN INDIAN HISTORY



MODULE - 16

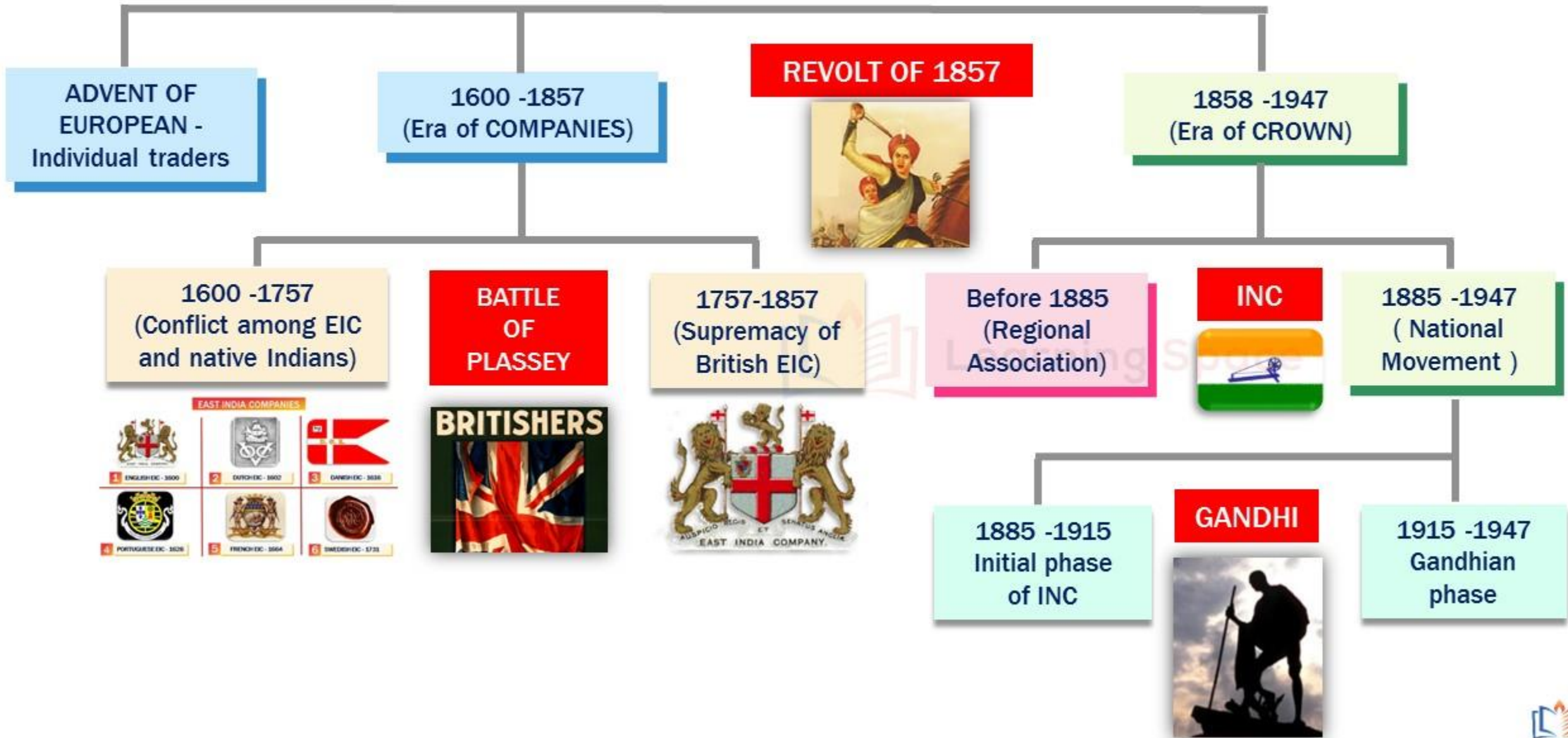
ADMINISTRATIVE STRUCTURE

1765-1853

PART-1

MODERN HISTORY

DISCOVERY OF INDIA



ADMINISTRATIVE SYSTEM UNDER BRITISH RULE

INTRODUCTION

EVOLUTION OF CONSTITUTIONAL DEVELOPMENT

PHASES

1765-1858

UNDER THE
COMPANY RULE



1858- 1947

UNDER THE
BRITISH CROWN



These period witnessed a plethora of constitutional and administrative changes. The nature and objective of these changes were to serve the British interest but these changes also introduced elements of the modern State into India's political and administrative system.

ADMINISTRATIVE SYSTEM UNDER BRITISH RULE

INTRODUCTION

EVOLUTION OF CONSTITUTIONAL DEVELOPMENT



1765-1858

UNDER THE COMPANY RULE

DUAL ADMINISTRATION OF 1765

REGULATING ACT OF 1773

PITTS INDIA ACT OF 1784

CHARTER ACT OF 1793

CHARTER ACT of 1813

CHARTER ACT of 1833

CHARTER ACT of 1853

1858- 1947



UNDER THE BRITISH CROWN

GOVERNMENT OF INDIA 1858

INDIAN COUNCIL ACT 1861

INDIAN COUNCIL ACT 1892

MORLEY-MINTO REFORM ACT 1909

MONTAGU- CHELMSFORD REFORMS 1919

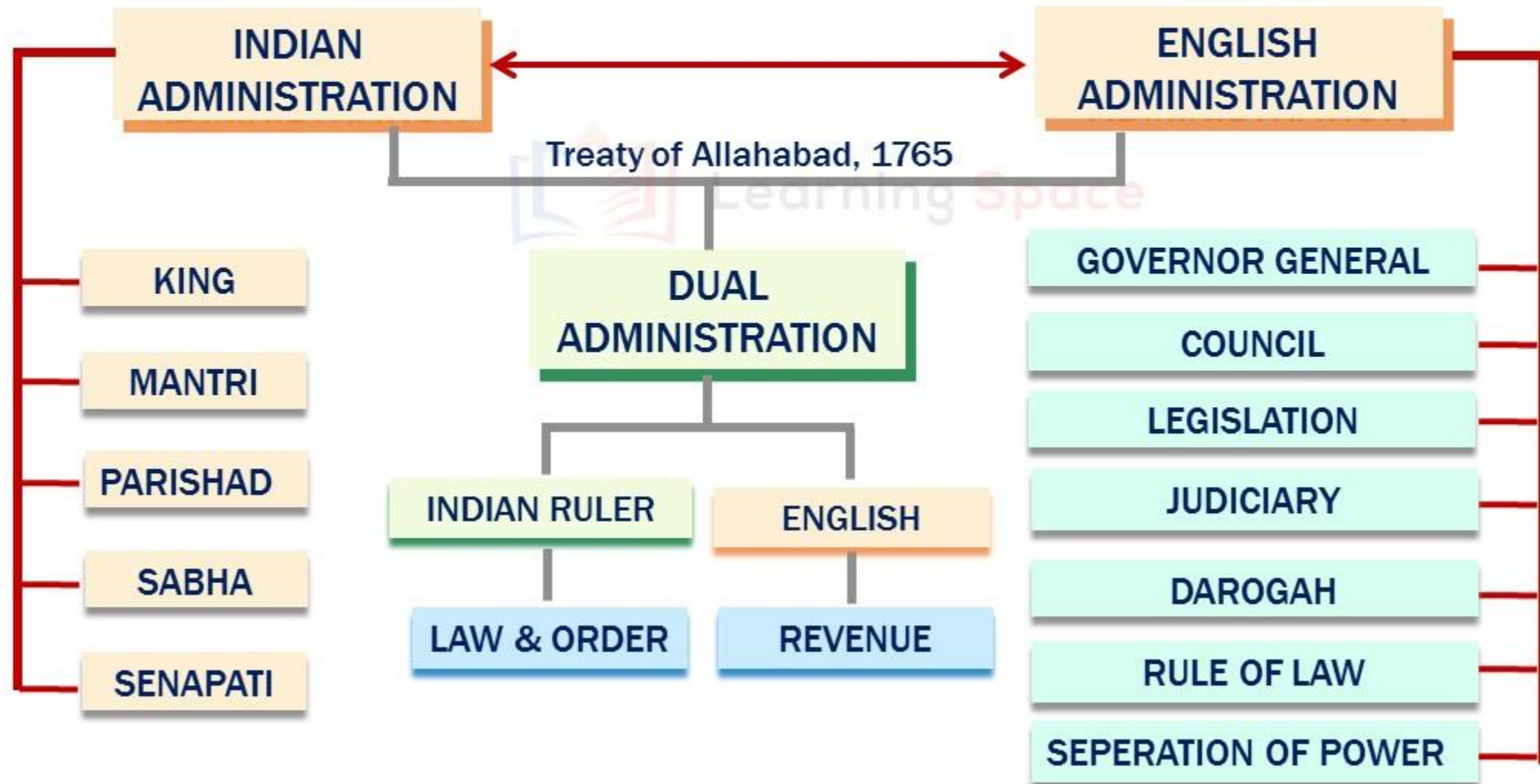
GOVERNMENT OF INDIA ACT 1935

INDIAN INDEPENDENCE ACT 1947

ADMINISTRATIVE SYSTEM UNDER BRITISH RULE

INTRODUCTION

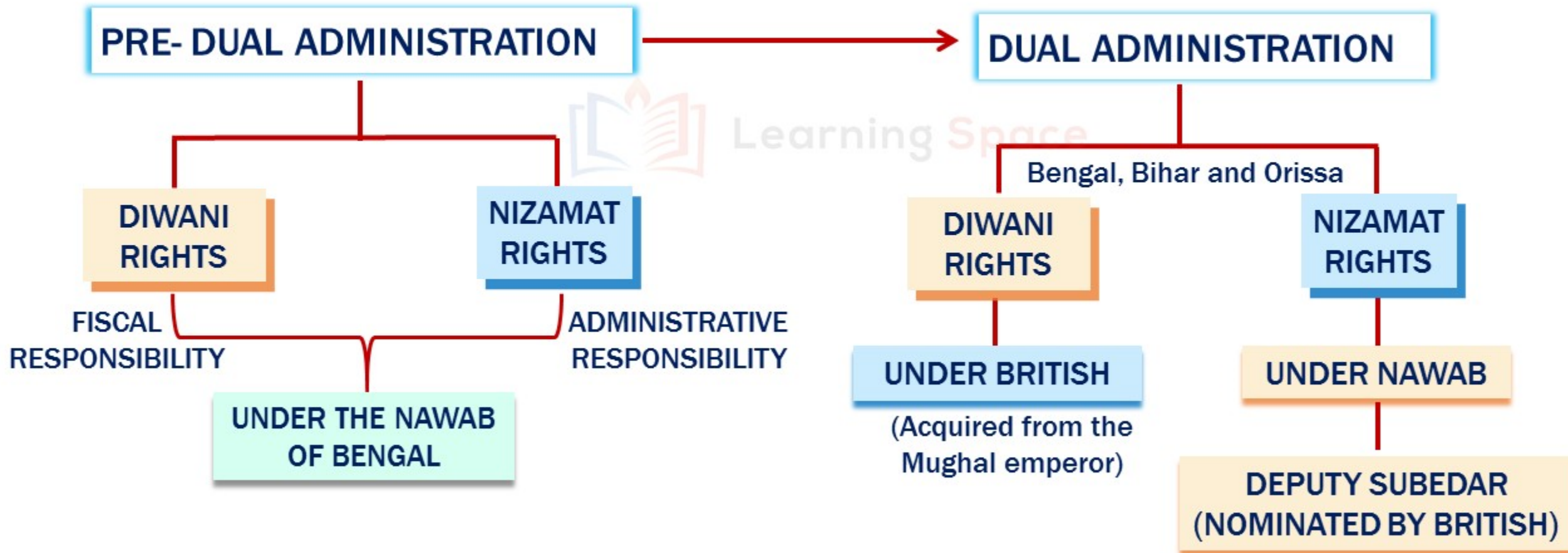
Administrative system under British empire transformed the traditional administrative system.



ADMINISTRATIVE SYSTEM BETWEEN 1765 TO 1773

DUAL ADMINISTRATION IN BENGAL (1765-72)

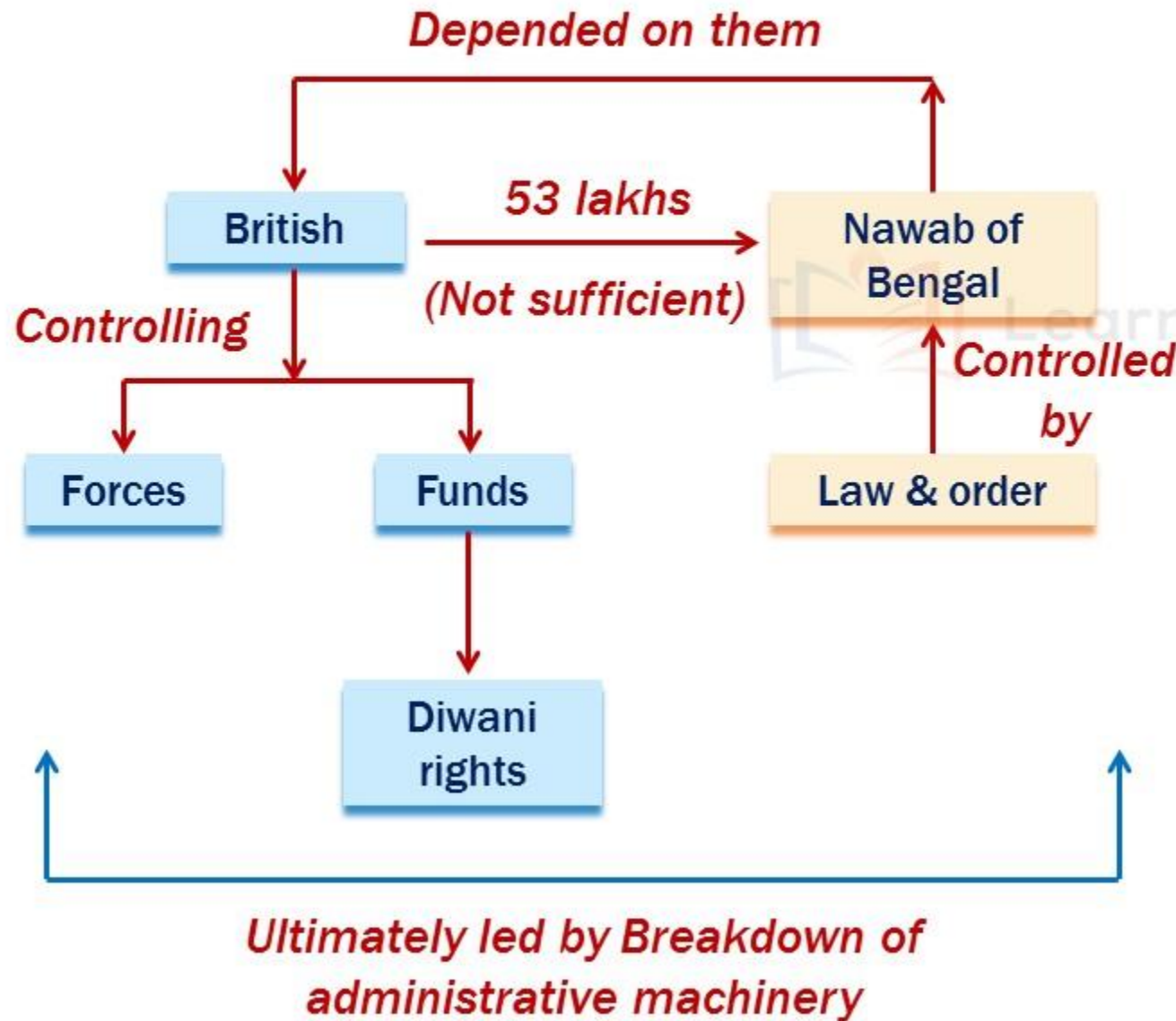
Treaty of Allahabad, 1765



As a Diwan, company **directly** collected its revenue while through the right to nominate Dy. Subedar, it **indirectly** controlled the Nizamat or Police and Judicial power

ADMINISTRATIVE SYSTEM BETWEEN 1765 TO 1773

DUAL ADMINISTRATION IN BENGAL (1765-72)



The dual system led to an administrative breakdown and proved disastrous for the people of Bengal.

Neither the Company nor the Nawab cared for administration and public welfare. Warren Hastings did away with the dual system in 1772.

Warren Hastings did away with the dual system in 1772.

ADMINISTRATIVE SYSTEM BETWEEN 1765 TO 1773

DUAL ADMINISTRATION IN BENGAL (1765-72)

Robert Clive introduced dual system of government.

REASONS FOR DUAL ADMINISTRATION



Since Bengal was the richest province of that time, so Robert Clive wanted to have control and authority over Bengal.

Company did not take over the complete control as it was just a trading company, having no expertise in governance.

Company's philosophy was guided by the profit motive so 'what's wrong if one gets something free of cost'.

Dual administration added to their power and stronghold over the entire Bengal region.

ADMINISTRATIVE SYSTEM BETWEEN 1765 TO 1773

DUAL ADMINISTRATION IN BENGAL (1765-72)

CRITICAL EVALUATION POSITIVE ASPECT

ON COMPANY

- This system was advantageous as **Company** had the **authority but no responsibility** while Indian rulers had all the responsibility but no authority.
- Because Nawab claim that he did not have money and EIC claimed that they were not rulers.

- Under this, Administration theoretically divided between company and Nawab.
- **Whole power was actually in the hands of company and Nawab was mere puppet.**

ADMINISTRATIVE SYSTEM BETWEEN 1765 TO 1773

DUAL ADMINISTRATION IN BENGAL (1765-72)

CRITICAL EVALUATION NEGATIVE ASPECT

ON INDIANS

- Badly affected Indian merchants as they have to pay 40% of revenue while British enjoy free trade.
- British left no stone unturned to extract each penny from peasants which reduced them to beggars.
- Ambiguous administrative machinery created confusion.

ON COMPANY

Rampant corruption among company's servants due to which Company was at the stage of bankruptcy while servants of company were flourishing.

Dual System was abolished by Warren Hastings in 1772 and Bengal was brought under Direct control of the British. Thus British government decided to Regulate the Company.

THEORY

DUAL ADMINISTRATION IN BENGAL (1765-72)

- 1 After **Battle of Buxar (1764)**, Company secured **Diwani (right to collect revenue)** of **Bengal, Bihar and Orissa** from Mughal emperor.
- 2 Now, **Diwani right (collecting revenue)** was under **British** control and **Nizamat rights** (i.e. police and judicial functions) under **Nawab of Bengal**.
- 3 This arrangement in the administration was called as **Dual Administration**.
- 4 Clive appointed Deputy Diwan who were responsible to collect Diwani.
 - Mohammad Raza khan for Bengal
 - Raja Shitab Roy for Bihar
- 5 The Company exercised diwani rights as the Diwan, acquired from the Mughal emperor and the nizamat rights through its right to nominate the deputy subahdar from the subahdar of Bengal.
- 6 Nawab was responsible for maintaining peace and order, but he depended both for funds and forces upon the Company because the latter controlled the army and revenues. Nawab received 53 lakh rupees from the British East India Company every year.
- 7 This system led to an administrative breakdown. Neither the Company nor the Nawab cared for administration and public welfare. Warren Hastings did away with the dual system in 1772.

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REGULATING ACT OF 1773

1

REASONS FOR BRINGING THE ACT

MANAGEMENT ISSUE

- To address the problem of **mismanagement of company in India**;
- To address the problem of **mismanagement in the administration due to dual system** of governance instituted by Lord Clive;

REVENUE ISSUE

- Revenue crunch in the company
- Servants of the Company **engaged in private trade, accepting presents, bribes** from the 'natives'
 - Famine of 1770 further **reduced the revenue**.
 - In 1772, the **EIC applied for a loan** of One Million Pounds to the British government.

FUNCTIONAL ISSUE

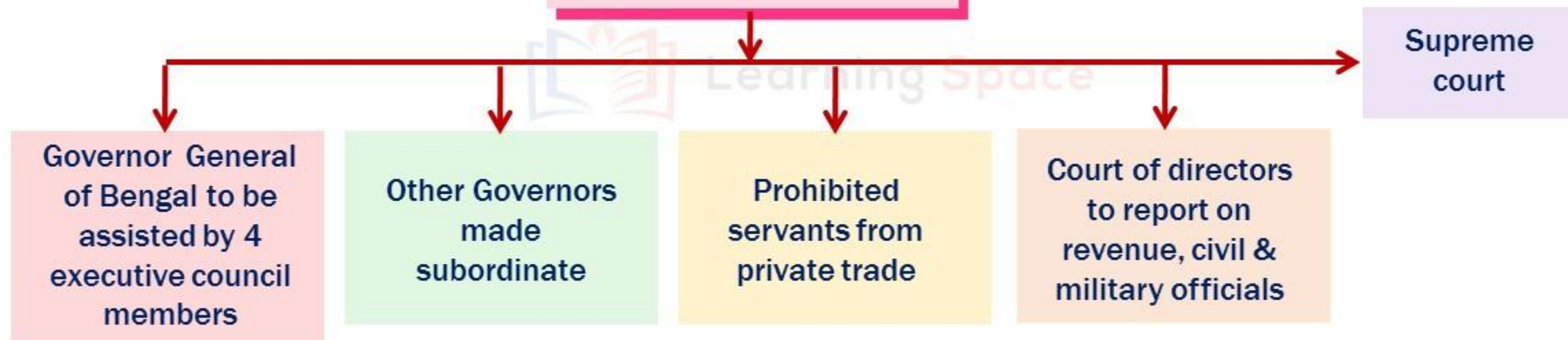
- Due to reduction in dividends, **shareholders demanded greater control over the company**.
- To control the company, which had morphed from a **business entity to a semi-sovereign political entity**.

REGULATING ACT OF 1773

2

FEATURES OF THE ACT

REGULATING ACT - 1773



ADMINISTRATIVE SYSTEM BETWEEN 1765 TO 1773

REGULATING ACT OF 1773

ISSUES WITH REGULATING ACT OF 1773

- In this Act Supreme court was established.
- Under the Regulating Act 1773, the servants of the company came within the jurisdiction of the Supreme Court.

- Governor general and its executive council they were accountable and responsible for their actions to the supreme court.
- It created a tussle between supreme court and Governor General and his council.

To rectify the defects of the Regulating Act of 1773, the British Parliament passed the Amending Act of 1781, also known as the Act of Settlement

ADMINISTRATIVE SYSTEM BETWEEN 1765 TO 1773

AMENDING ACT OF 1781

FEATURES OF THE ACT

- It is also known as Declaratory Act, 1781 or **Act of Settlement**.
- Via this act, tussle between Supreme Court and servants of the company was solved by **curtailing the power of Supreme Court** in favour of **Governor General and his council**.
- The **servants of the Government** were immune if they did anything while discharging their duties.
- The Act also asserted that Muslim cases should be determined by Muslim law and Hindu law applied in Hindu cases.

Amending Act of 1781 was the first attempt in India towards separation of the executive from the judiciary by defining the respective areas of jurisdiction.

ADMINISTRATIVE SYSTEM BETWEEN 1765 TO 1773

REGULATING ACT OF 1773



CRITICAL EVALUATION POSITIVE ASPECT

It was the **first step** taken by the British Government to control and regulate the **affairs** of the East India Company in India

- It recognized, for the **first time**, the political and administrative functions of the Company;
- It laid the **foundations of central administration** in India.

ADMINISTRATIVE SYSTEM BETWEEN 1765 TO 1773

REGULATING ACT OF 1773



CRITICAL EVALUATION NEGATIVE ASPECT

- Governor General was powerless before his colleagues because he had no veto power.
- Presidencies of Bombay and Madras continued to act on their discretion during emergencies. They also continued wars and alliances.

- Parliamentary control was ineffective as there was no concrete arrangements to scrutinized the reports sent by Governor General in council.
- Act did not address the concerns of people, who were paying revenue to the company but now were dying in starvation.

THEORY

REGULATING ACT OF 1773

2

FEATURES OF THE ACT

1

It made the governors of Bombay and Madras presidencies subordinate to the governor-general of Bengal, unlike earlier, when the three presidencies were independent of one another

2

It designated the Governor of Bengal as the 'Governor-General of Bengal' and created an Executive Council of four members to assist him.

3

It prohibited the servants of the Company from engaging in any private trade or accepting presents or bribes from the 'natives'

4

It strengthened the control of the British Government over the Company by requiring the Court of Directors (governing body of the Company) to report on its revenue, civil, and military affairs in India.

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PITT'S INDIA ACT OF 1784

1 REASONS FOR BRINGING THE ACT



BRITISH PRIME
MINISTER

Address the
shortcomings
of regulating
Act of 1773.

To **control company**, which
had morphed from a
business entity to a semi-
sovereign political entity.

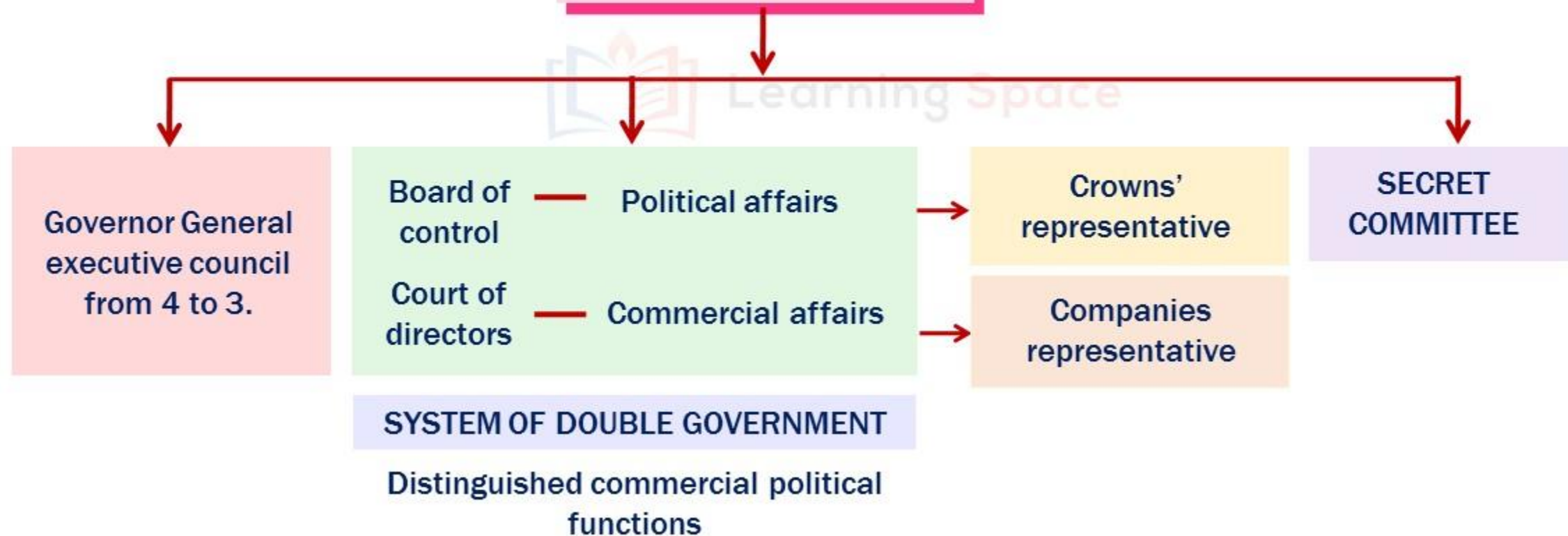
Addressing the
problem of
management of
company in India

CONSTITUTIONAL DEVELOPMENT BETWEEN 1773 AND 1858

PITT'S INDIA ACT OF 1784

2 FEATURES OF THE ACT

PITTS INDIA ACT - 1784



Now the fate of the Indians would be decided by company directly and British government indirectly.

ADMINISTRATIVE SYSTEM BETWEEN 1765 TO 1773

PITTS INDIA ACT OF 1784

3 CRITICAL EVALUATION

POSITIVE ASPECT

Company's territories in India for the **first time** were called as the "**British possessions in India**".

British Government was **given the supreme control over Company's affairs** and its administration in India

Reduction in council made it easier for Governor General to get majority in any **decision** and in case of tie, he had final say.

Starting with the Regulating Act of 1773, British Government control over the company was gradually increasing.

ADMINISTRATIVE SYSTEM BETWEEN 1765 TO 1773

PITTS INDIA ACT OF 1784

3 CRITICAL EVALUATION

NEGATIVE ASPECT

- The **boundary** between government's control and company's power lacked clarity.
- Similarly the **division of responsibility** between BOC, COD and GG was ambiguous.

- BOC was alleged for **nepotism**.
- Thus **this act was full of grey areas** as boundaries could not be fixed and matters were subjective.

The British government felt legally and morally responsible to address the concerns of local peoples in British-occupied territory.

ADMINISTRATIVE SYSTEM BETWEEN 1765 TO 1773

SUPPLEMENTARY ACT 1786

It removed the defects of Regulating Act of 1773 and made Governor General position more authoritative.

Governor General was given the power to override the council to hasten the decision making process and was made commander-in-chief

Disclosing of property

- All civil and military officers were ordered to disclose their property within two months of their joining their posts.

Severe punishments were for corrupt officers.

Thus via act of 1786, Cornwallis became the first effective ruler of British India under the authority of Board of Control and the Court of Directors

THEORY

PITT'S INDIA ACT OF 1784

2

FEATURES OF THE ACT

- 1 Company was represented by court of directors and crown was represented by new body board of control.
- 2 There was secret committee which transmit the orders of the board to India and act as a link between COD and BOC.
- 3 Established a system of double government. i.e. **joint government of company and crown.**
- 4 **It reduced the governor general executive council from 4 to 3.**

5

Board of control

- manage the political affairs.
- supervise and direct all operations of the civil and military government or revenues of the British possessions in India.
- given full access to company records
- it had the power to send governors to India and full authority to alter them.
- Board of control comprises of- **chancellor of exchequer, privy counsellors and secretary of state.**

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